Students sue university over webcam-monitored exams



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The Central Student Council of the University of Amsterdam has begun preliminary proceedings against the university for its use of surveillance software during online examinations. Depending on the outcome, the case could have repercussions for the rest of Dutch higher education.

News

By HOP , Translation Taalcentrum-VU

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Read in Dutch

Privacy complaints about online invigilation have been piling up since the start of the corona crisis. Youth organisations voiced their concerns, and the House of Representatives weighed in on the issue as well. So far, two universities of applied sciences have openly distanced themselves from the hotly debated monitoring software.

The University of Amsterdam (UvA) has not: it expects to hold another two hundred online exams using Proctorio invigilation software before the end of the spring semester. The software uses students' webcams to monitor them as they take their exams at home.

The Central Student Council is now bringing the matter to court, reports student magazine Folia. The Council feels that students should be able to refuse the use of Proctorio during online exams without incurring study delays.

Under the Dutch Higher Education Act, new exam methods cannot be used without the consent of the central councils and faculty councils. In April, the Central Student Council of the UvA issued a negative recommendation on the use of Proctorio, but the university's Executive Board decided to use the software nevertheless. The Council hopes that participation councils at other institutes of higher education will also benefit from the preliminary proceedings.

Difficult to predict

The case will be brought before the Amsterdam District Court on Thursday. The students' chances of winning the suit are difficult to predict, says Paul Zoontjens, professor of education law at Tilburg University. "If the university can make it clear that it has neither the staff nor the facilities to hold exams in any other way, the judge will be sensitive to that. But if the students can demonstrate that other institutions do offer alternative options, that could sway the case in their favour."

The question remains whether the students are going about this the right way, as there is also a national committee for these kinds of disputes, to which the council could have turned first. "It won't help their case if it turns out they did not approach the committee", says Zoontjens.

Minister of Education Ingrid van Engelshoven (D66) seems unsympathetic to the privacy concerns raised with regard to online invigilation. Earlier this year, she called on the participation councils to show adaptability and flexibility "where necessary" during the corona crisis.

Tags: coronavirus | proctoring | privacy | online education

Source:
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https://dub.uu.nl/en/news/students-sue-university-over-webcam-monitored-exams

Court sides with University of Amsterdam on use of surveillance software



The University of Amsterdam (UvA) can continue to use surveillance software during online exams. This is the outcome of preliminary proceedings brought before the Amsterdam District Court by two student councils and a UvA student. TU/e's Executive board welcomes the court's ruling.

BY HOGER ONDERWIJS PERSBUREAU PHOTO SHUTTERSTOCK

Like many other universities, UvA uses Proctorio surveillance software to prevent students from cheating on online exams by looking things up or sharing answers with one another. The program uses students' webcams, microphones and browser activity to monitor them while they take their exam, and also tracks their mouse movements and keyboard use. Any suspicious activity is automatically reported, after which apn invigilator can review the data.

According to the student councils, UvA should have first sought students permission before allowing invigilators to access their data. The national umbrella organisations for higher education participation councils supported this standpoint. In addition, the organisations argued that the use of this type of surveillance software is in violation of European privacy law (the GDPR).

Lawful use

The Amsterdam District Court thought differently, however, ruling that UvA's use of online invigilation is not illegal. The Court's decision was primarily based on the statutory examination regulations, which explicitly state that student councils have no right of consent when it comes to invigilation policies. This means that there was no legal reason for UvA to seek the councils' permission.

The Court also ruled that UvA's use of surveillance software does not constitute a violation of students' privacy. UvA's public task as an educational institution – to provide education, administer exams and award degrees – is laid down by law. As such, the GDPR allows universities to process personal data to the extent that this is necessary to perform their task. The Court agreed with UvA that the coronavirus measures require certain exams to be administered online, and that universities should make efforts to prevent fraud in doing so.

UvA's handling of students' data was also ruled to be GDPR-compliant: through its agreement with software provider Proctorio, the company was also bound to European privacy law. The Court further noted that the online surveillance process does not involve live monitoring – invigilators are only granted access to the data once the program has detected significant abnormal behaviour. Finally, the data is encrypted and automatically destroyed after 30 days.

Eindhoven

TU/e's Executive board is relieved. "We are content with the court's decision on this matter", says Frank Baaijens."The judge clearly states that proctoring is necessary and allowed, so that the university can continue to carry out its public duty under the current circumstances. It's a good thing that this last resort in online examination remains available, because it's essential at this point that we prevent study delay on a large scale, and that we guarantee the quality of the diplomas."

Source:
Hoger Onderwijs Persbureau. (2020, June 12). *Court sides with University of Amsterdam on use of surveillance software*. Cursor.
https://www.cursor.tue.nl/en/news/2020/juni/week-2/court-sides-with-university-of-amsterdam-on-use-of-surveillance-software/